



CHAPTER lxxxiii.

An Act to confirm certain Provisional Orders of the A.D. 1910.
Local Government Board relating to Chesterfield and
Wakefield. [3rd August 1910.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Orders should be
confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (No. 6) Act 1910.

A.D. 1910.

SCHEDULE.

BOROUGH OF CHESTERFIELD.

Chesterfield *Provisional Order made in pursuance of Sections 54 and 59 of*
Order. *the Local Government Act 1888.*

To the Mayor Aldermen and Burgesses of the Borough of
Chesterfield ;—

To the Justices of the Peace for the said Borough ;—

To the Justices of the Peace for the County of Derby in Quarter
Sessions assembled ;—

To the County Council of Derby ;—

To the Urban District Council of Brampton and Walton ;—

To the Urban District Council of Newbold and Dunston ;—

To the Rural District Council of Chesterfield ;—

To the Guardians of the Poor of the Chesterfield Union ;—

To the Parish Councils of Calow and Hasland ;—

To the Overseers of the Poor of the Parish of Brampton and of
the Townships of Calow Chesterfield Hasland Newbold and
Dunston Tapton and Walton ;—

To the Chairman of the Parish Meeting of the Township of
Tapton ;—

To the Chesterfield Gas and Water Board ;—

To the Chesterfield Joint Hospital Committee ;—

To the North Derbyshire Hospital Committee ;—

To the Joint Committee appointed by the Council of the Borough
of Chesterfield and the Parish Meeting of the Township of
Tapton and exercising the powers and duties of the Authority
under the Burial Acts 1852 to 1906 ;—

And to all others whom it may concern.

51 & 52 Vict. c. 41. WHEREAS by Section 54 of the Local Government Act 1888 the
Local Government Board are empowered to make a Provisional Order
for altering the boundary of any Borough and by such Order to divide
or alter any electoral division ;

And whereas the Borough of Chesterfield is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of Chesterfield and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors and the said Borough is for the purposes of the election of Councillors divided into three wards termed respectively the North Ward the South Ward and the West Ward;

A.D. 1910.
—
Chesterfield
Order.

And whereas the said Borough is co-extensive with the Township of Chesterfield and is an Urban District of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the said Borough has a separate commission of the peace and police force;

And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Derby are the local education authority for the other purposes of that Act;

2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the schedule to this Order and of the Confirmation Acts specified in Part II. of the said schedule so far as the last-mentioned Acts relate to the Orders specified in that schedule are in force in the said Borough;

And whereas the Urban District Council for the said Borough have adopted the provisions of—

(A) The Infectious Disease (Prevention) Act 1890;

(B) The Public Health Acts Amendment Act 1890;

(C) The Private Street Works Act 1892; and

(D) The Notification of Births Act 1907;

53 & 54 Vict.
c. 34.
53 & 54 Vict.
c. 59.
55 & 56 Vict.
c. 57.
7 Edw. 7.
c. 40.

and those provisions are accordingly in force in the said Borough;

And whereas the Baths and Washhouses Acts 1846 to 1899 and the Public Libraries Acts 1892 to 1901 are in force in the said Borough;

9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.
55 & 56 Vict. c. 53.
56 Vict. c. 11.
1 Edw. 7. c. 19.
56 & 57 Vict. c. 73.
15 & 16 Vict. c. 85.
6 Edw. 7. c. 44.

And whereas by virtue of subsection (2) of Section 53 of the Local Government Act 1894 the powers and duties of the authority under the Burial Acts 1852 to 1906 for an area comprised in the Townships of Chesterfield and Tapton were transferred to the Council of the said Borough and the Parish Meeting of Tapton and the said powers and duties are exercised by a Joint Committee appointed in pursuance of the said section;

And whereas the Urban District of Brampton and Walton in the County of Derby immediately adjoins the said Borough and comprises

A.D. 1910. the Parish of Brampton and the Township of Walton and is subject
Chesterfield to the jurisdiction of the Urban District Council of Brampton and
Order. Walton;

53 & 54 Vict. And whereas the Urban District Council of Brampton and Walton
c. 59. have adopted the provisions of Parts II. III. and V. of the Public
Health Acts Amendment Act 1890 and those provisions are accordingly
in force in the Urban District of Brampton and Walton;

And whereas the Urban District of Newbold and Dunston in the
County of Derby immediately adjoins the said Borough and is co-extensive
with the Township of Newbold and Dunston and is subject to the juris-
diction of the Urban District Council of Newbold and Dunston;

And whereas the Urban District Council of Newbold and Dunston
have adopted the provisions of—

53 & 54 Vict. (A) The Infectious Disease (Prevention) Act 1890 ;
c. 34.
53 & 54 Vict. (B) Parts II. and III. of the Public Health Acts Amendment Act
c. 59. 1890; and

55 & 56 Vict. (c) The Private Street Works Act 1892 ;
c. 57. and those provisions are accordingly in force in the Urban District of
Newbold and Dunston ;

And whereas the Townships of Calow and Hasland in the County
of Derby immediately adjoin the said Borough and are contributory
places in the Rural District of Chesterfield and are subject to the
jurisdiction of the Rural District Council of Chesterfield ;

And whereas the said Rural District Council have adopted the
provisions of the Infectious Disease (Prevention) Act 1890 and the pro-
visions of Part III. of the Public Health Acts Amendment Act 1890 which
are applicable to Rural Districts and those provisions are accordingly
in force in the said Rural District ;

3 & 4 Will.IV. And whereas the Lighting and Watching Act 1833 has been
c. 90. adopted in the said Township of Hasland ;

And whereas the Parish of Brampton and the Townships of Calow
Chesterfield Hasland Newbold and Dunston and Walton are included
in the Chesterfield Union and fifty-three guardians are elected for
the several parishes and townships comprised in that Union ;

And whereas the Township of Chesterfield is for the purpose of
the election of guardians divided into three wards which are respectively
co-extensive with and bear the same names as the municipal wards
and two guardians are elected for each of those wards and one guardian
is elected for the Parish of Brampton two guardians are elected for
the Township of Newbold and Dunston one guardian is elected for
the Township of Walton one Rural District Councillor is elected for

the Township of Calow and two Rural District Councillors are elected for the Township of Hasland ;

A.D. 1910.

*Chesterfield
Order.*

And whereas in pursuance of the Education Act 1902 the said Parish of Brompton and the said Townships of Calow Hasland Newbold and Dunston and Walton form part of the area of the County Council of Derby as the local education authority ;

And whereas the said Townships of Calow and Hasland are rural parishes within the meaning of the Local Government Act 1894 for which Parish Councils have been established ;

And whereas by an order made by the County Council of Derby in pursuance of the Isolation Hospitals Act 1893 and termed the North Derbyshire Hospital (County of Derby) Order 1896 as altered, by another order of the County Council termed the North Derbyshire Hospital (County of Derby) Order 1896 Amendment Order 1900 a hospital district which consists of the Chesterfield Rural District and certain urban and rural districts and is called the North Derbyshire Joint Hospital District has been constituted for the purposes of the provision maintenance and management of an isolation hospital or hospitals under the said Act for the reception of patients suffering from infectious disease ;

56 & 57 Vict.
c. 68.

And whereas the said Hospital District does not include any part of the said Borough or the said Urban Districts of Brompton and Walton and Newbold and Dunston but the said Borough and Urban Districts are by virtue of an order made by the County Council of Derby in pursuance of the Isolation Hospitals Act 1893 and termed the Borough of Chesterfield Hospital (County of Derby) Order 1898 as altered by another order of the county council termed the Chesterfield Joint Hospital (County of Derby) Order 1900 comprised in the Chesterfield Joint Hospital District ;

And whereas by virtue of an Order of the Local Government Board dated the Fourteenth day of August One thousand eight hundred and eighty-eight as altered by further Orders dated the Thirtieth day of August One thousand eight hundred and ninety-four the Eleventh day of August One thousand nine hundred and six and the twenty-third day of July One thousand nine hundred and nine the number of County Councillors for the County of Derby is sixty-four of which number three are apportioned to the said Borough and the said Borough has accordingly been divided into three electoral divisions termed respectively the Chesterfield No. 1 Electoral Division the Chesterfield No. 2 Electoral Division and the Chesterfield No. 3 Electoral Division and the Parish of Brompton and the Townships of Hasland and Walton together constitute the Brompton Walton and Hasland Electoral Division the Township of Calow is included in the

A.D. 1910. Brimington Electoral Division and the Township of Newbold and
Chesterfield Dunston is included in the Newbold and Dunston and Barlow Electoral
Order. Division of the said County;

42 & 43 Vict. And whereas the Rural District Council of Chesterfield in pur-
c. 31. suance of the Public Health (Interments) Act 1879 provided a cemetery
for the contributory place of Hasland as it existed prior to the Ninth
day of November One thousand eight hundred and ninety-two and have
since enlarged the cemetery so provided and have for the purposes of
such provision and enlargement borrowed the sums of One thousand
three hundred pounds and One thousand six hundred and twenty-seven
pounds of which the respective sums of One hundred and eighty-
eight pounds sixteen shillings and eightpence and One thousand four
hundred and twenty-two pounds now remain unpaid :

51 & 52 Vict. Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Sections 54 and 59 of the Local Govern-
ment Act 1888 and by any other enactments in that behalf do hereby
order that from and after the date of the Act of Parliament confirming
this Order the following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means
the Ninth day of November One thousand nine hundred
and ten ;
- (2) The expression “the existing Borough” means the Borough
of Chesterfield as it existed immediately prior to the com-
mencement of this Order ;
- (3) The expression “the Borough” means the existing Borough
as extended by this Order ;
- (4) The expression “the Corporation” means as the context
requires the Mayor Aldermen and Burgesses of the
existing Borough or of the Borough acting by the Council ;
- (5) The expressions “the County” and “the County Council”
mean respectively the Administrative County of Derby
and the County Council of that County ;
- (6) The expressions “the Brampton and Walton District” and
“the Brampton and Walton Council” mean respectively
the Urban District of Brampton and Walton and the
Urban District Council of that District the expressions
“the Newbold and Dunston District” and “the Newbold
and Dunston Council” mean respectively the Urban
District of Newbold and Dunston and the Urban District
Council of that District and the expressions “the Urban
Districts” and “the Urban Councils” mean respectively

the Brampton and Walton District and the Newbold and Dunston District and the Brampton and Walton Council and the Newbold and Dunston Council;

A.D. 1910.

Chesterfield
Order.

- (7) The expressions "the Rural District" and "the Rural Council" mean respectively the Rural District of Chesterfield and the Rural District Council of that District;
- (8) The expression "the Borough maps" means the two maps each marked "Map of the Borough of Chesterfield as extended 1910" and sealed with the official seal of the Local Government Board;
- (9) The expression "the Ward maps" means the two maps each marked "Map of the Wards of the Borough of Chesterfield as extended 1910" and sealed with the official seal of the Local Government Board;
- (10) The expression "the added areas" means the parts of the Brampton and Walton District of the Newbold and Dunston District and of the Rural District added to the existing Borough by this Order;
- (11) The expression "the added parts of Brampton and Walton" means the parts of the Brampton and Walton District which are coloured blue on the Borough maps the expression "the added part of Newbold and Dunston" means the part of the Newbold and Dunston District which is coloured brown on the Borough maps and the expressions "the added part of Calow" and "the added part of Hasland" mean respectively the parts of those Townships which are respectively coloured yellow and green on the Borough maps;
- (12) The expressions "the existing Parish of Brampton" "the existing Township of Calow" "the existing Township of Chesterfield" "the existing Township of Hasland" "the existing Township of Newbold and Dunston" and "the existing Township of Walton" mean in each case the Parish or Township as it existed immediately prior to the commencement of this Order and the expressions "the Parish of Brampton" "the Township of Calow" "the Township of Chesterfield" "the Township of Hasland" "the Township of Newbold and Dunston" and "the Township of Walton" mean in each case the Parish or Township as altered by this Order;
- (13) The expressions "the Act of 1888" and "the Act of 1894" mean respectively the Local Government Act 1888 and the Local Government Act 1894;

A.D. 1910.

*Chesterfield
 Order.*

(14) The expression "the Municipal Corporations Acts" means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression "the Public Health Acts" means the Public Health Act 1875 and the Acts amending and extending the same;

(15) The expression "the Burial Acts" means the Burial Acts 1852 to 1906;

(16) The expressions "the Joint Burial Committee" and "the burial area" mean respectively the joint committee appointed by the Corporation and the Parish Meeting of Tapton under subsection (2) of Section 53 of the Act of 1894 for the purposes of the Burial Acts and the area within which the Joint Burial Committee exercise the powers and duties of the authority under the Burial Acts;

(17) The expression "the Electric Lighting Order 1894" means the Chesterfield (Corporation) Electric Lighting Order 1894 and the expression "the Local Act of 1904" means the Chesterfield Corporation Tramways and Improvement Act 1904;

(18) The expression "the Confirming Act of 1892" means the Local Government Board's Provisional Order Confirmation (No. 14) Act 1892 and the expression "the Order of 1892" means the Borough of Chesterfield Order 1892.

Commence-
 ment of
 Order.

Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and ten:

Date of
 operation
 of Order for
 parish bur-
 gess lists &c.
 51 Vict. c. 10.

Provided that for the purposes of the parish burgess lists and burgess roll and other lists to be made for the Borough under the Municipal Corporations Acts of the lists of county electors and the county register to be made for the county in pursuance of the County Electors Act 1888 or any Act amending that Act of the lists and registers of parochial electors and any other lists or registers to be made in pursuance of the Act of 1894 and of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year one thousand nine hundred and ten and the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order.

Extension of
 Borough.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as

to include in addition to that area the added parts of Brampton and Walton the added part of Newbold and Dunston and so much of the Rural District as comprises the added part of Calow and the added part of Hasland.

A.D. 1910.

Chesterfield
Order.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Art. IV.—(1) One of the Borough maps and one of the Ward maps shall be deposited in the office of the Local Government Board and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the Clerk to the Brampton and Walton Council to the Clerk to the Newbold and Dunston Council to the Clerk to the Rural Council to the Board of Inland Revenue to the Registrar-General and to the Board of Agriculture and Fisheries and a copy of the Ward map so deposited and certified in like manner shall be sent within the said period to the Registrar-General and to the Board of Agriculture and Fisheries.

Deposit of
maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the Borough fund.

Copies of
map to be
evidence.

Art. V. The powers and duties of the justices of the peace appointed for the existing Borough of the clerk to those justices and of the police constables and other peace officers of the existing Borough shall extend to and apply throughout the Borough:

Powers and
duties of
justices &c.
extended.

Provided that every person committing an offence in any part of the added areas prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or

[Ch. lxxxiii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 6) Act, 1910. 1 GEO. 5.]

A.D. 1910. justices in relation to any matter arising in or concerning any part of
 ————— the added areas may be carried on continued or completed in like
Chesterfield manner and with the like incidents and consequences as nearly as may
Order. be as if this Order had not been made.

Parish bur- Art. VI.—(1) For the purposes of the parish burgess lists and
 gess lists &c. burgess roll and the other lists to be made under the Municipal
 Corporations Acts and of all matters connected with incidental to or
 consequent upon those purposes the added areas shall be deemed to
 have always been part of the Borough.

(2) In making out revising or otherwise dealing with the said lists
 and roll or the lists of county electors and the county register to be
 made for the County in pursuance of the County Electors Act 1888 or
 any Act amending that Act or the lists and registers of parochial
 electors effect shall be given so far as the circumstances require or
 allow to the provisions of this Order.

(3) Where any difficulty in giving effect to the provisions of this
 Order can be obviated or removed by any alteration in or re-arrange-
 ment of or any other action affecting the said lists roll and registers
 that alteration re-arrangement or action so far as the same may be
 necessary for giving effect to the said provisions shall be made or taken
 by the town clerk of the existing Borough or the clerk to the County
 Council as the case may require and the Overseers of the Poor shall
 render such assistance as may be requisite for the purpose of the said
 alteration re-arrangement or action by the town clerk or clerk to the
 County Council as the case may be and that alteration re-arrange-
 ment or action shall be deemed to be authorised by the provisions in
 force with respect to the said lists roll and registers.

(4) Where in the opinion of the Local Government Board the
 circumstances so require the Local Government Board may make such
 order as appears to them to be necessary to give effect to the provi-
 sions of this Order and may vary so far as is requisite the provisions
 in force with regard to the said lists roll and registers.

Number of Art. VII. The number of Councillors of the Borough shall be
 Councillors increased from eighteen to twenty-four and the number of Aldermen
 and Alder- of the Borough shall be increased from six to eight.
 men.

Division into Art. VIII. Subject to the provisions of the Municipal Corporations
 wards. Acts with respect to the alteration of wards the following provisions
 shall have effect:—

(1) For the purposes of the election of Councillors the Borough
 shall be divided into four wards which shall be named
 respectively the North Ward the South Ward the West
 Ward and the Central Ward :

A.D. 1910.

(2) Each of the said wards shall comprise that portion of the Borough which is indicated by a separate colour and distinguished by the name of the ward on the Ward maps:

Chesterfield Order.
Boundaries of wards.

(3) Six Councillors shall be assigned to each of the said wards.

Art. IX. For the purposes of the election of a town council for the Borough in pursuance of the Municipal Corporations Acts in the month of November One thousand nine hundred and ten the following provisions shall apply:—

Provisions for election of Councillors in 1910.

(A) The town clerk and the Mayor of the existing Borough or such other persons as the Local Government Board shall appoint shall perform the duties devolving upon the town clerk and Mayor respectively under the Municipal Corporations Acts and the Mayor of the existing Borough shall be the returning officer at the election for all the wards Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for any of the wards:

(B) Twenty-four Councillors of the Borough shall be elected on the First day of November One thousand nine hundred and ten and eight Aldermen of the Borough shall be elected on the Ninth day of November One thousand nine hundred and ten:

(C) Notwithstanding anything in the Municipal Corporations Acts to the contrary all the Councillors of the existing Borough who shall be in office on the First day of November One thousand nine hundred and ten shall go out of office on that date and all the Aldermen of the existing Borough who shall be in office on the Ninth day of November One thousand nine hundred and ten shall go out of office on that date and all the said Councillors and Aldermen shall be eligible for election as Councillors of the Borough on the First day of November One thousand nine hundred and ten.

Art. X.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and ten in pursuance of this Order shall retire as follows:—

Retirement of Councillors and Aldermen elected in 1910.

(A) The two Councillors for each ward who are elected by the smallest number of votes on the First day of November One thousand nine hundred and eleven:

(B) The two Councillors for each ward who are elected by the largest number of votes on the First day of November One thousand nine hundred and thirteen:

(C) The other Councillors for each ward on the First day of November One thousand nine hundred and twelve.

[Ch. lxxxiii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 6) Act, 1910. 1 GEO. 5.]

A.D. 1910.

*Chesterfield
Order.*

(2) The Aldermen elected for the Borough in the year One thousand nine hundred and ten in pursuance of this Order shall retire as follows:—

(A) The four Aldermen elected by the smallest number of votes on the Ninth day of November One thousand nine hundred and thirteen:

(B) The other four Aldermen on the Ninth day of November One thousand nine hundred and sixteen.

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and ten or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the chairman determine which of the Councillors or Aldermen as the case may be shall go out of office on the dates above specified respectively.

Local Acts
and Orders.

Art. XI.—(1) Subject to the provisions of this Order the unrepealed provisions of the Local Acts and of the Confirmation Acts specified in the Schedule to this Order so far as the last-mentioned Acts respectively relate to the Provisional Orders specified in that schedule and of any other Local Act (including any Local Act passed or to be passed during the present Session of Parliament) or of any other Provisional Order duly confirmed by Parliament and affecting the existing Borough or the Corporation as the same respectively are in force within the existing Borough at the commencement of this Order shall extend and apply to the Borough and any reference therein to the existing Borough and the Corporation shall be deemed to refer to the Borough and the Corporation thereof:

1 Edw. 7.
c. cxxi.

Provided that nothing in this Article or in the Electric Lighting Order 1894 or in the Local Act of 1904 as extended and applied to the Borough by this Article shall prejudicially affect the undertaking or powers of the Derbyshire and Nottinghamshire Electric Power Company under the Derbyshire and Nottinghamshire Electric Power Act 1901 in relation to any part of the added areas and that in relation to any part of the added areas that Act shall continue to apply as if no consent of a distributing authority were required in any case to enable the company to supply energy in any part of the added areas.

58 & 59 Vict.
c. cxlvii.

(2) The Chesterfield Gas and Water Board Act 1895 shall be altered so as to include the added part of Calow within the limits of that Act for the supply of gas and water and that Act as amended by the Chesterfield (Gas and Water Board) Order 1900 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 3) Act 1900 and the Chesterfield Gas and Water Board

63 & 64 Vict.
c. liv.

Act 1904 shall have effect as if any reference therein to the Borough and the Corporation were a reference to the Borough as extended by this Order and the Corporation thereof:

Chesterfield Order.

4 Edw. 7.
c. xlv.

Provided that nothing in this Order shall prejudicially affect the rights of the Chesterfield Gas and Water Board to charge the rates or rents specified in the proviso to Section 25 of the Chesterfield Waterworks and Gaslight Company's Extension Act 1865 for water supplied by them or to charge the price specified in Section 28 of that Act for gas supplied by them and for the purposes of those sections the Borough of Chesterfield shall be deemed to be the Borough as it existed before its extension by the Borough of Chesterfield Order 1892.

Saving for
Chesterfield
Gas and
Water Board.

28 Vict.
c. xxxvi.

Art. XII.—(1) Subject to the provisions of this Order all byelaws and regulations and every list of tolls and table of fees and payments and scale of charges made by the Corporation which at the commencement of this Order are in force in the existing Borough shall thenceforth apply to the Borough until or except in so far as any such byelaws regulations list of tolls table of fees payments or scale of charges may be altered or repealed.

Byelaws &c.

(2) All byelaws and regulations made by the Urban Councils and the Rural Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas shall on that date cease to be in force except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Council of the District in which the part is situated or have been sent to the surveyor or clerk to that Council one month at least before that date and shall not have been disapproved by that Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Council of the District in which the part is situated and that District. Provided that any proceedings which if this Order had not been made might have been taken by either of the Urban Councils or by the Rural Council for any offence committed before the commencement of this Order against any byelaws and regulations made by that Council or their predecessors and in force immediately before the commencement of this Order in any part of the added areas may be taken by the Corporation as if those byelaws and regulations had remained in force and the Corporation had been substituted therein for that Council.

Art. XIII.—(1) The added part of Calow and the added part of Hasland shall respectively cease to form part of the North Derbyshire

Alteration
of Hospital
Districts.

[Ch. lxxxiii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 6) Act, 1910. 1 GEO. 5.]

A.D. 1910. Joint Hospital District and shall form part of and be included in the
Chesterfield Chesterfield Joint Hospital District.
Order.

(2) The North Derbyshire Hospital (County of Derby) Order 1896 as altered by the North Derbyshire Hospital (County of Derby) Order 1896 Amendment Order 1900 shall have effect as if for the purposes of those Orders the Rural District as diminished by this Order and the Rural Council were the Rural District and the Rural District Council to which those Orders relate and the Borough of Chesterfield Hospital (County of Derby) Order 1898 as altered by the Chesterfield Joint Hospital (County of Derby) Order 1900 shall have effect as if for the purposes of those Orders the Borough as extended by this Order and the Corporation thereof were the existing Borough and the Corporation thereof.

Town clerk
and other
officers con-
tinued.

Art. XIV.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Borough
auditors.

(2) The auditors who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Compensa-
tion to exist-
ing officers.

Art. XV.—(1) Every clerk to justices and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section and the compensation shall not exceed the limit therein mentioned and shall be paid in the case of any such officer or servant whose office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of subdivision (1) of this Article any officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the County Council or the Standing Joint Committee or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

A.D. 1910.
Chesterfield
Order.

Art. XVI.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against either of the Urban Councils or by or against the Rural Council in relation exclusively to any part of the added areas shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Actions &c.
not to abate.

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by either of the Urban Councils or by the Rural Council or their predecessors in relation exclusively to any part of the added areas shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Saving for
contracts &c.

Art. XVII. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough.

Corporation
property &c.

Art. XVIII. Subject to the provisions of this Order—

(1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to either of the Urban Councils or to the Rural Council in relation exclusively to any part of the added areas shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council and any property and liabilities vested in or attached to any of those Councils in relation to any part of the

Property &c.
of Urban and
Rural Coun-
cils.

A.D. 1910.

*Chesterfield
Order.*

added areas conjointly with any other area shall be a matter for adjustment under Section 62 of the Act of 1888:

(2) The Urban Councils and the Rural Council shall cease to exercise any powers or have any duties within any part of the added areas:

Arrears of
rates &c.

(3)—(A) All arrears of rates made by either of the Urban Councils in respect of hereditaments in any part of the added areas and all other payments which at the commencement of this Order are due or owing to either of the Urban Councils in respect of any part of the added areas may be collected and recovered by the Corporation;

(B) All arrears of rates made by any Overseers of the Poor for the purposes of the Public Health Acts or for highway expenses or for the purposes of the Lighting and Watching Act 1833 which at the commencement of this Order are due or owing in respect of hereditaments in the added part of Calow and the added part of Hasland may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied or in the case of rates made in the existing Township of Hasland for the purposes of the Lighting and Watching Act 1833 towards defraying any expenses incurred by the Parish Council of that Township under the last-mentioned Act and the balances if any shall be paid to the Corporation:

(4) Any balance in the hands of the Overseers of the Parish of Brampton or of the Townships of Calow Hasland Newbold and Dunston and Walton at the commencement of this Order shall be a matter for adjustment under Section 62 of the Act of 1888:

Adaptation
of provisions
as to adjust-
ment.

(5) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under

any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Local Government Board may sanction :

A.D. 1910.
—
Chesterfield
Order.

(6) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order so far as it relates to the amalgamation of the added areas with the existing Township of Chesterfield that section shall have effect—

(A) As if the Overseers of the Parish of Brampton or of the Townships of Calow Chesterfield Hasland Newbold and Dunston and Walton were within the meaning of the said section authorities affected by this Order; and

(B) As if in subsection (5) of the Section the expression "Council" included the Overseers of the said Parish and of each of the said Townships and as if the poor rate or any other rate leviable in pursuance of the said Section as applied by this Article were substituted for any fund mentioned in the Section; and

(c) As if for subsections (6) and (7) of the said Section there were substituted the subsections hereunto appended that is to say:—

" (6) If it is necessary for the purpose of giving effect to any agreement or award for an adjustment that a separate rate shall be levied in part of a parish only the agreement or award may authorise the making of such a separate rate as if it were a poor rate and as if the part of the parish on which it is to be levied were a whole parish":

" (7) Any sum paid for the purposes of any adjustment or in pursuance of any order or award of an arbitrator shall be applied by such person in such manner and for such purpose as the Local Government Board may authorise or direct."

Art. XIX. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund and general district rate of the Borough and so much of any sums

Mortgage
debts of Cor-
poration.

A.D. 1910. *Chesterfield Order.* borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Adoptive Acts.

Art. XX. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Public Health Acts Amendment Act 1890 the Infectious Disease (Prevention) Act 1890 the Private Street Works Act 1892 the Public Libraries Acts 1892 to 1901 and the Notification of Births Act 1907 shall be in force in and apply to the Borough as if the same had been adopted therein.

Art. XXI. Subject to the provisions of any Order which the Local Government Board may hereafter make—

Powers under Section 33 of Act of 1894.

(1) The provisions of any Order heretofore made by the Local Government Board and conferring upon the Council of the existing Borough any of the matters mentioned in Section 33 of the Act of 1894 and in that Order shall be deemed to have effect as if any reference to the existing Township of Chesterfield extended and applied to the Township of Chesterfield:

Powers under the Public Health Acts Amendment Act 1907.

7 EDW. 7.
c. 53.

(2) The provisions of any Order made by the Local Government Board or by the Secretary of State and declaring to be in force in the existing Borough any Parts or Sections of the Public Health Acts Amendment Act 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough:

(3) The order made by the Local Government Board under the said Section 33 and dated the twenty-first day of October One thousand eight hundred and ninety-six whereby the powers duties and liabilities of the Overseers of the Parish of Brampton and of the Overseers of the Township of Walton with respect to appeals or objections by the Overseers in respect of the valuation lists or appeals in respect of the poor rate or county rate or the basis of the county rate were vested in or attached to the Brampton and Walton Council shall cease to apply and have effect within the added parts of Brampton and Walton.

Art. XXII. For the purposes and subject to the provisions of the Education Acts 1870 to 1909—

A.D. 1910.

*Chesterfield
Order.*

- (1) All public elementary schools (including the sites and schoolhouses) provided by the local education authority and situate within any part of the added areas with the furniture and fittings of the schoolhouses shall by virtue of this Order be transferred to and vested in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority and all contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of the said public elementary schools furniture or fittings or of any other public elementary school situate in any part of the added areas or with respect to the officers teachers and servants of any of the said public elementary schools shall by virtue of this Order enure to and be carried into effect by and be discharged and satisfied by the Corporation as the local education authority:

Transfer of
public ele-
mentary
schools &c. to
Corporation.

Provided that Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of this subdivision:

- (2) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) and of any furniture or fittings transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Mortgage
debts in
respect of
transferred
schools.

- (3) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in any part of the added areas shall cease to be in force:

Education
byelaws.

A.D. 1910.

*Chesterfield
Order.*

(4) Any managers of public elementary schools in the added areas who were appointed by the District Council of the district or the Parish Council of the parish in which the school is situated or by the County Council shall vacate office at the commencement of this Order.

Differential
rating.

Art. XXIII.—(1) During a period of ten years from the commencement of this Order the total amount in the pound of the general district rates to be levied in any one year by the Corporation in respect of any hereditament in the added parts of Brampton and Walton shall not exceed two shillings and ninepence in each pound of the rateable value of the hereditament for the purposes of a general district rate.

(2) During a period of five years from the commencement of this Order the total amount in the pound of the general district rates to be levied in any one year by the Corporation in respect of any hereditament in the added part of Hasland or the added part of Calow shall not exceed such an amount in the pound as when added to the aggregate amount in the pound of all other rates levied on that hereditament will make up a total of six shillings and ninepence in each pound of the rateable value of such hereditament.

(3) Subject to the provisions of subdivision (2) of this Article the total amount in the pound of the general district rates to be levied by the Corporation in any one year in respect of any hereditament in the added part of Newbold and Dunston the added part of Hasland or the added part of Calow shall—

(A) During a period of five years from the commencement of this Order be less by one shilling; and

(B) During a period of five years from the ninth day of November one thousand nine hundred and fifteen be less by sixpence than the total amount in the pound of the general district rates levied by the Corporation in the same year in respect of any hereditament of the like kind situate within the area of the existing Borough.

Extension of
jurisdiction
of Joint
Burial Com-
mittee.

Art. XXIV.—(1) The burial area shall be extended so as to include the whole of the Borough and the Burial Acts shall be in force within the burial area as so extended and all property debts and liabilities now belonging to incurred in relation to or attaching to the areas under the said Acts within the existing Borough and the Township of Tapton in which the powers and duties of the authority under those Acts are now exercised by the Joint Burial Committee shall be deemed to belong to or to have been incurred in relation to or to attach to the Borough and the Township of Tapton respectively.

(2) The members of the Joint Burial Committee shall respectively continue to act as representatives of the Council by which they have

been appointed as members of that Committee and shall respectively remain in office until the date upon which they would have ceased to act as such representatives if this Order had not been made.

A.D. 1910.
Chesterfield
Order.

(3) The Rural Council shall continue to permit the inhabitants of the added part of Hasland to be buried in the cemetery provided for the contributory place of Hasland as if this Order had not been made and at the same charges as are made in respect of interments of persons resident in the remainder of that contributory place.

(4) So much of the Confirming Act of 1892 as relates to subdivisions (2) (3) and (4) of Article XXV. of the Order of 1892 shall be repealed and subject to the provisions of this Order the property and liabilities vested in or attaching to the Rural Council in respect of the cemetery provided for the contributory place of Hasland shall be a matter for adjustment under Section 62 of the Act of 1888 as applied by this Order.

Art. XXV.—(1) At the commencement of this Order such members if any of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the Borough and any member of the county police force so transferred shall hold office upon the same tenure and upon the same terms and conditions as if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he is entitled shall not be less than they would have been if this Order had not been made.

County
Police.

(2) The provisions of Section 15 (2) of the Police Act 1890 as amended by the Police (Superannuation) Act 1906 shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

53 & 54 Vict.
c. 45.
6 Edw. 7.
c. 7.

Art. XXVI.—(1) Subject to the provisions of Section 54 of the Act of 1888—

Electoral
Divisions
and County
Councillors.

(A) The number of County Councillors for the County shall be increased from sixty-four to sixty-five of which number four shall be apportioned to the Borough fifty-five shall continue to be apportioned to so much of the County as is not included in the Borough and in the Boroughs of Glossop and Ilkeston and the said Order dated the Fourteenth day of August One thousand eight hundred and eighty-eight altered as aforesaid shall be deemed to be further altered accordingly :

A.D. 1910.

Chesterfield
Order.

(B) The added part of Calow shall cease to form part of the
 Brimington Electoral Division the added parts of Brampton
 and Walton and the added part of Hasland shall cease to
 form part of the Brampton Walton and Hasland Electoral
 Division and the added part of Newbold and Dunston shall
 cease to form part of the Newbold and Dunston and Barlow
 Electoral Division of the County :

(c) The area comprised in the Borough shall form four new
 electoral divisions of the County to be termed respectively
 the Chesterfield (North) Electoral Division the Chesterfield
 (South) Electoral Division the Chesterfield (West) Electoral
 Division and the Chesterfield (Central) Electoral Division :

(d) The Chesterfield (North) Electoral Division shall comprise the
 area included in the North Ward constituted by this Order
 the Chesterfield (South) Electoral Division shall comprise
 the area included in the South Ward constituted by this
 Order the Chesterfield (West) Electoral Division shall com-
 prise the area included in the West Ward constituted by
 this Order and the Chesterfield (Central) Electoral Division
 shall comprise the area included in the Central Ward
 constituted by this Order.

(2) The persons who immediately before the commencement of
 this Order are the County Councillors representing the Brimington
 Electoral Division the Brampton Walton and Hasland Electoral Division
 and the Newbold and Dunston and Barlow Electoral Division of the
 County shall continue to represent the same divisions as if they had been
 originally elected to represent those divisions as hereby diminished.

(3) The persons who immediately before the commencement of
 this Order are the persons respectively representing the existing
 Chesterfield No. 1 the existing Chesterfield No. 2 and the existing
 Chesterfield No. 3 Electoral Divisions of the County shall from and
 after the commencement of this Order represent respectively the
 Chesterfield (North) the Chesterfield (South) and the Chesterfield (West)
 Electoral Divisions of the County as hereby constituted as if they had
 been originally elected to represent the last named divisions and an
 election of a County Councillor shall within one calendar month from
 the commencement of this Order or within such further time as may
 be fixed by the Local Government Board take place in the Chesterfield
 (Central) Electoral Division formed by this Order. The date of the
 election shall be fixed by the Returning Officer of the County and the
 election shall be held by the same persons and in the same manner
 as an election to fill a casual vacancy and the County Councillor elected
 at that election shall come into office immediately after the election
 and shall hold office for the same period as he would have done if he

had been elected at the last triennial election of County Councillors in the County. A.D. 1910.
Chesterfield
Order.

Art. XXVII. The added areas shall be separated from the existing parish or townships to which they respectively belong and shall be amalgamated with the existing Township of Chesterfield. Alteration of
parishes.

Art. XXVIII. Subject to the provision of Section 60 of the Act of 1894 and as regards any alteration of the wards hereby constituted to the provisions of that Act as to the alteration of wards for the election of guardians the following provisions shall have effect:— Rural Dis-
trict Coun-
cillors and
Guardians.

(1) The number of guardians for the Chesterfield Union shall be increased from fifty-three to fifty-five and the number of Guardians for the Township of Chesterfield shall be increased from six to eight:

(2) The Township of Chesterfield shall for the purposes of the election of guardians be divided into four wards which shall be respectively co-terminous in area with and shall bear the same name as the wards into which the Borough is divided for the purposes of the election of Councillors:

(3) Two guardians shall be assigned to each of the said wards:

(4)—(A) The persons who at the commencement of this Order are holding the office of Guardian of the Poor for the North Ward the South Ward and the West Ward of the existing Township of Chesterfield shall be deemed to have been elected for and shall represent the North Ward the South Ward and the West Ward respectively of the Township of Chesterfield upon the Board of Guardians of the Chesterfield Union until the date on which they would have retired if this Order had not been made; and

(B) The persons who at the said date are holding the office of Guardian of the Poor for the existing Parish of Brampton and each of the existing Townships of Newbold and Dunston and Walton and the offices of Rural District Councillor and Guardian of the Poor for each of the existing Townships of Calow and Hasland shall be deemed to have been elected for and shall represent the parish or township as altered by this Order until the date on which they would have retired if this Order had not been made.

Art. XXIX.—(1) Any powers and duties transferred by the Act of 1894 to the Parish Council of the existing Township of Calow or of the existing Township of Hasland shall so far as regards the added part of Calow or the added part of Hasland be vested in exerciseable by and imposed on the persons and authorities in whom they would Parish
Council.

A.D. 1910.
Chesterfield
Order.

be vested or by whom they would be exerciseable or on whom they would be imposed if the added part of Calow or the added part of Hasland as the case may be had been included in a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred so far as regards the added part of Calow or the added part of Hasland for the purpose or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in and attach to the persons and authorities aforesaid. Any property or liabilities of the said Parish Councils held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall so far as regards the added part of Calow or the added part of Hasland by virtue of this Order be transferred to and vest in and attach to the Corporation.

(2) The Parish Council of the existing Township of Calow shall be deemed to have been elected and shall be the Parish Council for the Township of Calow.

(3) The Parish Councillors elected for the Hasland and Birdholme Wards of the existing Township of Hasland shall go out of office and the Parish Councillors elected for the Grassmoor Ward of that township shall be deemed to have been elected and shall be the Parish Council for the Township of Hasland.

Ecclesiastical
divisions and
charities:

Art. XXX. Nothing in this Order shall affect the ecclesiastical divisions of any parish or township or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment which now is applicable for the benefit of any existing parish or township affected by this Order.

Valuation
lists.

Art. XXXI. Until new valuation lists are in force—

(1) The portions of the valuation lists of the existing Parish of Brampton and of the existing Townships of Calow Hasland Newbold and Dunston and Walton which relate to hereditaments in the added areas shall be deemed to form part of the valuation list of the Township of Chesterfield:

(2) The remaining portions of the valuation lists of the existing Parish of Brampton and of the existing Townships of Calow Hasland Newbold and Dunston and Walton shall respectively be deemed to be the valuation lists of the Parish of Brampton and of the Townships of Calow Hasland Newbold and Dunston and Walton.

County rate
basis.

Art. XXXII:—(1) Subject to any future revision the basis or standard of the county rate for the County shall be deemed to be altered by the deduction from the amount appearing therein as the total annual value of the property in the existing Parish of Brampton and the existing Townships of Calow Hasland Newbold and Dunston

and Walton of such a sum in each case as will represent the annual value of the property in the part of the parish or township as the case may be which is included by this Order in the Township of Chesterfield and by the addition of the total of those sums to the amount appearing therein as the total annual value of the property in the existing Township of Chesterfield.

A.D. 1910.
Chesterfield
Order.

(2) For the purposes of this Article the sum which will represent the annual value of the property in the part of the parish or township as the case may be which is included by this Order in the Township of Chesterfield shall in each case be the amount which in relation to the amount appearing in the basis or standard of the county rate as the total annual value of the existing parish or township is in the proportion which the assessable value of the property in the affected part of the existing parish or township bears to the total assessable value of property in the existing parish or township.

(3) For the purposes of this Article assessable value means one-half of the rateable value according to the valuation list for the time being in force of the agricultural land together with the rateable value according to that list of the buildings and other hereditaments not being agricultural land in the existing parish or township or in the part included in the Township of Chesterfield as the case may require.

Art. XXXIII. For the purposes of the registers of persons entitled to vote at an election of Members of Parliament of the registers of parochial electors and of jury lists the parish and townships affected by this Order shall be deemed to continue unaltered until the new registers and lists come into operation:

Saving for
existing lists
of parliamen-
tary voters
&c.

Provided that for the purposes of any election under the Act of 1894 to be held for any area affected by this Order and of the holding of any Parish Meeting in the Townships of Calow and Hasland the town clerk or the clerk of the County Council as the case may require shall if and when necessary cause the register of parochial electors to be altered in such manner as may be requisite to give effect to the provisions of this Order.

Art. XXXIV. For any purposes connected with the settlement and removal of the poor in relation to cases affected by this Order the following provisions shall have effect that is to say:—

Settlement
and removal
of the poor.

- (1) Every person who at the commencement of this Order has acquired or is in the course of acquiring a settlement in the existing Parish of Brampton or in any of the existing Townships of Calow Chesterfield Hasland Newbold and Dunston and Walton by reason of any residence completed or in the course of completion of any act or thing done or

A.D. 1910.

Chesterfield
Order.

in the course of being done of any status condition right or privilege acquired or created or in the course of acquisition or creation—

(i) in the existing Township of Chesterfield; or

(ii) in that part of the existing Parish of Brampton which by virtue of this Order will form the Parish of Brampton; or

(iii) in either of the parts of the existing Parish of Brampton which is included in the added part of Brampton and Walton; or

(iv) in that part of the existing Township of Calow which by virtue of this Order will form the Township of Calow; or

(v) in the added part of Calow; or

(vi) in that part of the existing Township of Hasland which by virtue of this Order will form the Township of Hasland; or

(vii) in the added part of Hasland; or

(viii) in that part of the existing Township of Newbold and Dunston which by virtue of this Order will form the Township of Newbold and Dunston; or

(ix) in the added part of Newbold and Dunston; or

(x) in that part of the existing Township of Walton which by virtue of this Order will form the Township of Walton; or

(xi) in that part of the existing Township of Walton which is included in the added part of Brampton and Walton;

shall be deemed to have acquired or to be in the course of acquiring in the first third fifth seventh ninth and eleventh cases a settlement in the Township of Chesterfield in the second case a settlement in the Parish of Brampton in the fourth case a settlement in the Township of Calow in the sixth case a settlement in the Township of Hasland in the eighth case a settlement in the Township of Newbold and Dunston in the tenth case a settlement in the Township of Walton and in each case as if the existing parish or township or the specified part of the existing parish or township were and had always been the parish or township or a part of the parish or township in which by virtue of this Article the person shall be deemed to have acquired or to be in the course of acquiring a settlement;

(2) Every person who at the commencement of this Order has acquired or is in the course of acquiring a status of irremovability from the Chesterfield Union by reason of residence— A.D. 1910.
Chesterfield
Order.

(i) in the existing Township of Chesterfield ; or

(ii) in either of the parts of the existing Parish of Brampton which is included in the added part of Brampton and Walton ; or

(iii) in the added part of Calow ; or

(iv) in the added part of Hasland ; or

(v) in the added part of Newbold and Dunston ; or

(vi) in that part of the existing Township of Walton which is included in the added part of Brampton and Walton ;

or by reason of residence elsewhere .

(vii) in the existing Parish of Brampton ; or

(viii) in the existing Township of Calow ; or

(ix) in the existing Township of Hasland ; or

(x) in the existing Township of Newbold and Dunston ; or

(xi) in the existing township of Walton ;

shall be deemed to have acquired or to be in course of acquiring the like status by reason of residence in the first second third fourth fifth and sixth cases in the Township of Chesterfield in the seventh case in the Parish of Brampton in the eighth case in the Township of Calow in the ninth case in the Township of Hasland in the tenth case in the Township of Newbold and Dunston and in the eleventh case in the Township of Walton.

Art. XXXV. Notwithstanding the alteration in the areas of the parish and townships effected by this Order all contribution orders made by the Guardians of the Poor of the Chesterfield Union and all precepts made by the County Council or by the Rural Council before the commencement of this Order shall be as valid in law as if this Order had not been made. Saving for
contribution
orders and
precepts.

Art. XXXVI. All arrears of rates made by the Overseers of the Poor and due or owing at the commencement of this Order in respect of hereditaments in the added areas shall be collected and recovered by the Overseers of the Poor of the Parish or Township in which the hereditament is now situated as if this Order had not been made. Arrears of
rates.

Art. XXXVII. This Order may be cited as the Chesterfield Short title.
(Extension) Order 1910.

[Ch. lxxxiii.] *Local Government Board's* [10 EDW. 7 &
Provisional Orders Confirmation (No. 6) Act, 1910. 1 GEO. 5.]

A.D. 1910.

Chesterfield
Order.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Title or Short Title.
17 & 18 Vict. c. cxiv. - -	The Chesterfield Market Act 1854.
36 Vict. c. xvii. - -	The Chesterfield Corporation Markets Act 1873.
1 Edw. 7. c. cx. - -	The Chesterfield Improvement Act 1901.
4 Edw. 7. c. xxxvii. - -	The Chesterfield Corporation Tramways and Improve- ments Act 1904.

PART II.—CONFIRMATION ACTS.

Session and Chapter.	Short Title.	Order relating to Chesterfield thereby confirmed.
55 & 56 Vict. c. ccxxiv.	The Local Government Board's Provisional Order Confirmation (No. 14) Act 1892.	The Borough of Chesterfield Order 1892.
57 & 58 Vict. c. xlix.	The Electric Lighting Orders Con- firmation (No. 1) Act 1894.	The Chesterfield (Corporation) Electric Lighting Order 1894.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of May One thousand nine hundred and
ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

CITY OF WAKEFIELD.

A.D. 1910.

*Provisional Order to amend the Wakefield (Extension)
Order 1909.*

*Wakefield
(Amendment)
Order.*

To the Mayor Aldermen and Citizens of the City of Wakefield ; —

To the Justices of the Peace for the said City ; —

To the Justices of the Peace for the County of the West Riding
of Yorkshire in Quarter Sessions assembled ; —

To the County Council of the West Riding of Yorkshire ; —

To the Rural District Council of Wakefield ; —

To the Guardians of the Poor of the Wakefield Union ; —

And to all others whom it may concern.

WHEREAS by the Wakefield (Extension) Order 1909 which was confirmed by the Local Government Board's Provisional Orders Confirmation (No. 7) Act 1909 (which Order and Act are herein-after respectively referred to as "the Wakefield Order" and "the Confirming Act") the boundary of the City of Wakefield was altered so as to include in addition to the area of the then existing City the Urban District of Sandal Magna which area was coloured green on the City maps as defined by Article I. of the Wakefield Order (herein-after referred to as "the City Maps") and it was provided that the boundary of the City as extended by the Wakefield Order should be that shown by the red line on the City Maps ;

9 Edw. 7.
c. cxxii.

And whereas since the passing of the Confirming Act it has been ascertained that the areas coloured blue and green on the two maps marked A. which are sealed with the official seal of the Local Government Board and are herein-after referred to as "Maps A." which areas were not within the existing City as defined by the Wakefield Order and did not form part of the Sandal Magna Urban District which was included in the City by that Order were included within the boundary of the City of Wakefield as shown by the red line on the City Maps and it is therefore expedient that the Wakefield Order should be altered so as to exclude those areas from the City of Wakefield as extended by that Order ;

And whereas in pursuance of Article VIII. of the Wakefield Order the City of Wakefield as extended by that Order is for the purposes of the election of Councillors divided into eleven wards including the two wards known as the Kirkgate Ward and the Calder Ward the areas of which are coloured respectively pink and yellow and green and blue on the two maps marked B which are sealed with the official

A.D. 1910. seal of the Local Government Board and are herein-after referred to
Wakefield as "Maps B" and it is desirable to alter the boundary between the
(Amendment) said Kirkgate and Calder Wards:
Order.

51 & 52 Vict Now therefore We the Local Government Board in pursuance of
c. 41. the powers given to Us by Section 87 of the Local Government Act
1888 and by any other enactments in that behalf do hereby order that
from and after the date of the Act of Parliament confirming this
Order (herein-after referred to as "the commencement of this Order")
the Confirming Act so far as it relates to the Wakefield Order shall be
altered so that the following provisions shall have effect:—

Alteration Art. I. The Wakefield Order shall be altered so as to provide
of Wakefield that—
(Extension)
Order 1909.

(1) The areas coloured blue and green on Maps A shall be
deemed not to have been and not to be included in the
City of Wakefield as extended by that Order and the
boundary of the City as shown by the red line on the
City maps shall be deemed to be altered accordingly:

(2) Wherever reference is made to "the City" as defined in
Article I. of the Wakefield Order the reference shall mean
the City excluding the areas marked blue and green on
Maps A. and wherever reference is made to "the City Maps"
as defined in the said Article the reference shall mean the
City maps as altered by the exclusion of the areas coloured
blue and green on Maps A and the provisions contained in
the Wakefield Order in relation to matters in connexion
with incidental to or consequent upon the inclusion in the
City of Wakefield of the areas coloured blue and green on
Maps A shall so far as regards those matters be and be
deemed always to have been of no effect:

(3) Subject to the provisions of the Municipal Corporations Act
1882 and the Acts amending and extending the same with
respect to the alteration of wards the boundary between
the Kirkgate Ward and the Calder Ward shall be altered
by the transfer from the Kirkgate Ward to the Calder Ward
of the area coloured yellow on Maps B and by the transfer
from the Calder Ward to the Kirkgate Ward of the area
coloured blue on Maps B The Councillors representing
the said Wards at the commencement of this Order shall be
deemed from and after that date to represent those Wards
respectively as hereby altered:

(4) One of the Maps A and one of the Maps B shall be deposited
in the offices of the Local Government Board and the other
shall be deposited by the town clerk of the City at his

office within fourteen days after the date of this Order A.D. 1910.
Copies of the Map A deposited with the said town clerk
certified by him to be true shall be sent within one month *Wakefield*
after the commencement of this Order to the clerk of the *(Amendment)*
County Council of the West Riding of Yorkshire to the clerk to the Rural District Council of Wakefield to the Board
of Inland Revenue to the Registrar General and to the
Board of Agriculture and Fisheries and copies of the Map B
so deposited and certified in like manner shall be sent
within the said period to the Registrar-General and to the
Board of Agriculture and Fisheries and the provisions of
Article IV. (2) of the Wakefield Order shall apply to copies
of or extracts from Maps A.

Art. II. This Order may be cited as the Wakefield (Amendment) Short titles.
Order 1910 and the Wakefield Order and this Order may be cited
together as the Wakefield (Extension) Orders 1909 and 1910.

Given under the Seal of Office of the Local Government Board
this Thirteenth day of May One thousand nine hundred and ten.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, LTD.,

FOR

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